

GAHC010175802025



2025:GAU-AS:10622

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/4483/2025

SRI SUDIPTA KALITA
S/O LATE MOHAN CHANDRA KALITA, PROPRIETOR OF M.S BLUE FLAME
GAS SERVICE HAVING ITS PRINCIPAL PLACE OF BUSINESS OPP. NEHRU
MAIDAN, TEZPUR, ASSAM

VERSUS

THE INDIAN OIL CORPORATION LIMITED
HAVING ITS REGISTERED OFFICE AT INDIAN OIL BHAWAN, G9, ALI YAVAR
JUNG MARG, BANDRA EAST MUMBAI 400051

2:THE INDIAN OIL ASSAM OIL DIVISION

INIDAN OIL CORPORATION LIMITED
NORTH GUWAHATI
LPG BOTTLING PLANT
PO COLLEGE NAGAR
ABHOYPUR
NORTH GUWAHATI GUWAHATI 781031 ASSAM

3:THE CHIEF MANAGER PLANT
INIDAN OIL CORPORATION LIMITED
NORTH GUWAHATI
LPG BOTTLING PLANT
PO COLLEGE NAGAR
ABHOYPUR
NORTH GUWAHATI GUWAHATI 781031 ASSAM

4:THE DEPUTY GENERAL MANAGER LPG SALES
INIDAN OIL CORPORATION LIMITED
NORTH GUWAHATI
LPG BOTTLING PLANT

PO COLLEGE NAGAR
ABHOYPUR
NORTH GUWAHATI GUWAHATI 781031 ASSAM

5:THE DEPUTY GENERAL MANAGER PLANT
INIDAN OIL CORPORATION LIMITED
NORTH GUWAHATI
LPG BOTTLING PLANT
PO COLLEGE NAGAR
ABHOYPUR
NORTH GUWAHATI GUWAHATI 781031 ASSA

Advocate for the petitioner(s): OP Bhati

Advocate for the respondent(s): Mr. MK Choudhury, Senior Advocate
Mr. M Sarma

B E F O R E
HON'BLE MR. JUSTICE DEVASHIS BARUAH

ORDER

08.08.2025

Heard Mr. OP Bhati, the learned counsel appearing on behalf of the petitioner. Mr. MK Choudhury, the learned Senior Counsel assisted by Mr. M Sarma, the learned counsel, who appears on behalf of the Indian Oil Corporation.

2. Taking into account the issue involved in the instant proceedings, this Court takes up the writ petition for disposal at the motion stage itself.
3. The admitted facts as would be available from the materials on record would

show that the petitioner is an authorised distributor of Liquefied Petroleum Gas (for short, LPG) cylinders of the respondent Corporation. On 18.02.2025, a notice was issued to the petitioner alleging violation of Clause 23(a) of the "Indane" (Liquefied Petroleum Gas) Distributorship (Domestic and Commercial) Agreement and it was further alleged that an amount of Rs.09,04,533.24/- was incorrectly given credit to the petitioner's account. Under such circumstances, vide the communication dated 18.02.2025 the petitioner was asked to show cause. The petitioner on receipt of the said show cause notice dated 18.02.2025 submitted a communication to the DGM(Plant), North Guwahati BP dated 20.02.2025 requesting respondent No.5 herein for extension of time of 30(thirty) days to reply. However to the utter surprise of the petitioner, the respondent No.5 refused to extend the time as sought for and passed appropriate order for recovery of the amount as indicated above vide the recovery notice dated 21.03.2025.

4. During the course of hearing today, this Court enquired with Mr. OP Bhati, the learned counsel appearing on behalf of the petitioner as to what are the documents which the petitioner seeks for the purpose of submitting an effective reply. The learned counsel submitted that the documents which are required are the *Equipment Return Voucher* (for short, the ERV) slips which was made the basis for issuance of the show cause notice.

5. This Court had also taken note of the order passed by the Coordinate Bench of this Court dated 04.04.2025 in WP(C)No.1896/2025, wherein this Court observed that the respondent authorities should supply any document that the petitioner may ask so as to enable them to submit their respective reply.

6. It is further taken note of that pursuant to the said order dated 04.04.2025 passed in WP(C)No.1896/2025, the petitioner submitted a communication on

07.04.2025 seeking the ERV slips. However, without furnishing the ERV slips, the respondent authorities had issued an email dated 30.07.2025, whereby it was informed that the procedure for making debit/deductions from the entitlement of the petitioner would be taken up. It is under such circumstances that the communication dated 30.07.2025 has been assailed before this Court.

7. Mr. MK Choudhury, the learned Senior Counsel appearing on behalf of the IOC submitted that the ERV slips in question are voluminous in nature and as such, the respondent Corporation has requested the petitioner to inspect those documents in their Office. However, the respondents are not adverse to providing copies to the petitioner subject to the condition that the petitioner appears before the respondent No.3 for accepting the copies of the ERV slips.

8. The learned Senior Counsel further submitted that as per his instruction(s), the copies of the concerned ERV slips can be provided to the petitioner within 7(seven) days from today.

9. Taking into account the above submission and the subject matter involved in the instant proceedings, this Court, therefore, disposes of the instant writ petition with the following observation(s) and direction(s):

(i). The representative of the petitioner shall appear before the respondent No.3 on 18.08.2025 at 10.30 A.M. The respondent No.3 shall provide the ERV slips on the basis of which the respondent Corporation had issued the show cause notice dated 18.02.2025.

(ii). The petitioner is given the liberty to submit the reply on or before 03.09.2025.

(iii). The respondent Corporation shall pass appropriate order(s) duly taking into consideration the show cause reply, if so submitted by the petitioner

thereupon.

(iv). Till such decision is taken, the respondent authorities shall not proceed with debit/deduction from the entitlement of the petitioner.

10. With the above, the instant writ petition stands disposed of.

JUDGE

Comparing Assistant